

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
May 18, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2020-01139787 Vasquez vs. Hollybrook Montecito Operations, LLC	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiffs have shown

		that the Administrator's work is complete, the court's file is now closed. Plaintiffs are ordered to give notice of this ruling to the LWDA and Defendant.
2	30-2021-01178511 Robles vs. Insight Global, LLC	The tentative ruling is to continue the Final Report Hearing to January 25, 2027 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file may thus be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to Defendant.
3	30-2021-01207211 Ruiz vs. Mustang Extreme Environmental Services, LLC	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed. Plaintiff is ordered to give notice of this ruling to Defendant.
4	30-2021-01232212 Green vs. Landsea Homes Corporation	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement will be transmitted to the State Controller's Office's Unclaimed Property Fund on or before May 22, 2026. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.

5	30-2023-01336931 Gomez vs. Focus Industries, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed. Plaintiff is ordered to give notice of this ruling to the LWDA, and to Defendants.
6	30-2023-01356309 Escobedo vs. Block Tops, Inc.	The settlement administrator has confirmed that the distribution of the settlement funds has been made in accordance with the settlement terms that were approved by the court and that the amount of the uncashed checks from the settlement has been transmitted to the State Controller's Office's Unclaimed Property Fund. As Plaintiff has shown that the Administrator's work is complete, the court's file is now closed. Plaintiff is ordered to give notice of this ruling to the LWDA, and to Defendant.
8	30-2024-01410291 Ramirez vs. Arbitech, LLC	The tentative ruling is to continue the hearing on Plaintiff Melissa Ramirez's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") to October 5, 2026 at 1:30 p.m. There is an escalator clause in the settlement agreement, but this is a motion to have the settlement fully approved, and hence a specific gross settlement amount must be approved on the granting of this motion. At this point in time the parties should know or be able to determine the number of aggrieved employees and qualifying pay periods based on the PAGA Period the parties are using. The parties must provide the court with the cover letter that will be sent to aggrieved employees with their individual PAGA penalties payment. The cover letter must explain that no claims for unpaid or underpaid wages have settled, and that this settlement is without prejudice to the pursuit of any such claims.

		The court is inclined to grant approval of an attorneys' fees request of only 30% of the gross settlement amount or \$27,000.00, which the court finds fair, adequate and reasonable for the settlement of this size. Further, the court has insufficient information on the number of years of experience for timekeeper, Christine Noh. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved, with references to any corrections to the settlement agreement, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. Counsel should propose a realistic Final Report Hearing date and include it in the [Proposed] Order and Judgment, taking into account the time deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The court usually sets these hearings nine months after settlement approval if the check cashing deadline is 180 days. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
9	30-2024-01411006 Andrade vs. NES Equipment & Service Corp.	Plaintiff Israel Gutierrez Andrade's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") is GRANTED. The court concludes that the \$162,500.00 PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$48,750.00 to plaintiff's counsel for plaintiff's attorneys' fees; • \$10,209.99 to plaintiff's counsel for plaintiff's litigation costs, as requested;

		• \$5,000.00 to Plaintiff Israel Gutierrez Andrade as enhancement award; • \$2,990.00 to Apex Class Action LLC, the settlement administrator, as requested; • \$71,662.51 to the LWDA for its share of PAGA penalties; and • \$23,887.50 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for March 1, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved employee checks after 180 days, that the Administrator's work is complete, and that the court's file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of the ruling to the LWDA and Defendant.
10	30-2024-01437801 Diaz vs. K&K Foods Mgmt, Inc.	Plaintiff Pedro Pablo Diaz's ("Plaintiff") Motion for Approval of Settlement Under Private Attorneys General Act ("PAGA") is GRANTED. The court concludes that the \$210,000.00 PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$63,000.00 to plaintiff's counsel for plaintiff's attorneys' fees; • \$18,476.00 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$2,000.00 to Plaintiff Pedro Pablo Diaz as enhancement award, as requested; • \$2,950.00 to Phoenix Class Action Administration Solutions, the settlement administrator, as requested; • \$80,323.10 to the LWDA for its share of PAGA penalties; and • \$43,250.90 to the aggrieved employees for their share of PAGA penalties. The court sets a Final Report Hearing for February 22, 2027 at 1:30 p.m. to confirm that distribution efforts are fully completed, including the distribution of uncashed aggrieved

		employee checks after 180 days, that the Administrator’s work is complete, and that the court’s file thus may be closed. The parties must report to the court the total amount that was actually paid to the aggrieved employees. All supporting papers must be filed at least 16 days before the Final Report Hearing date. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendants.
11	30-2020-01136571 Loera vs. Hirsch Pipe & Supply Co., Inc.	Plaintiff Saul Loera (“Plaintiff”) Motion for Final Approval of Class Action and PAGA Settlement is GRANTED IN PART. The court finds that an attorneys’ fee award totaling \$450,000.00 or 30% of the Gross Settlement Amount is fair, adequate and reasonable for the class and settlement of this size, contingent nature of representation and the results achieved. The court concludes that the \$1,500,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$450,000.00 to plaintiff’s counsel for plaintiff’s attorneys’ fees (25% or \$112,500.00 to Lawyers for Justice, PC and 75% or \$337,500.00 to Schneider Wallace Cottrell Kim LLP), reduced from the \$500,000.00 requested; • \$20,298.35 to plaintiff’s counsel for plaintiff’s litigation costs (\$7,760.99 to Lawyers for Justice, PC and \$12,537.36 to Schneider Wallace Cottrell Kim LLP); • \$5,000.00 to Plaintiff Saul Loera as enhancement award, as requested; • \$12,500.00 to CPT Group, Inc., the settlement administrator, as requested; and • \$22,500.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is \$989,701.65. The Final Accounting hearing is set for February 22, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement

		Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues. Within five (5) days of this ruling, Plaintiff shall provide the court with a revised Proposed Final Order and Judgment reflecting this ruling. Plaintiff is ordered to give notice of this ruling to the LWDA, and Defendant.
12	30-2023-01334908 Barcenas vs. Advantage Management, Inc.	Plaintiff Bernardo Vargas Barcenas' ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement is GRANTED ON THE CONDITION THAT an amended [Proposed] Order and Judgment is provided to the court within five (5) days of this ruling that sets forth how the parties will comply with CRC Rule 3.771(b), which states: "Notice of the judgment must be given to the class in the manner specified by the court." The notice may be included with the checks that are mailed to the class members or posted on the administrator's website. The court concludes that the \$107,500.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$32,250.00 to plaintiff's counsel for plaintiff's attorneys' fees, as requested; • \$9,183.98 to plaintiff's counsel for plaintiff's litigation costs, as requested; • \$5,000.00 to Plaintiff Bernardo Vargas Barcenas as enhancement award, as requested; • \$5,750.00 to Phoenix Settlement Administrators, the settlement administrator, as requested; and • \$7,500.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is \$47,816.02. The Final Accounting hearing is set for April 12, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days

		before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment and identifying the number and value of any uncashed checks and the status of any unresolved issues. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendant.
13	JCCP 5429 Mastercorp Wage and Hour Cases	Petitioner Ninette Amaya Romero's ("Petitioner") Petition for Coordination is DENIED. The court DENIES Petitioner's Request for Judicial Notice of Declaration Of Angie Zavala in Support of Defendant MasterCorp Commercial Services, LLC's Motion to Compel Arbitration and Stay Proceedings in Romero v. MasterCorp Commercial Services, LLC, et al., filed on January 9, 2026, Los Angeles County Superior Court, Case No. 25PSCV02652, as it is not the proper subject of judicial notice. "A court may take judicial notice of the [e]xistence of each document in a court file, but cannot take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (<i>People v. Franklin</i> (2016) 63 Cal. 4th 261, 280.) Where a party does not argue that the existence of a filing, but rather asserts its content as truth, "we deny his request for judicial notice." (<i>Id.</i>) Petitioner seeks an order coordinating five actions: 1. <i>Amaya Romero v. MasterCorp, Inc., et al.</i>, Case No. 25PSCV02652, pending in Los Angeles County Superior Court ("<i>Romero</i> PAGA Action") 2. <i>Martinez v. MasterCorp Commercial Services, LLC</i>, Case No. 30-2024-01439413-CU-OE-CXC, pending in Orange County Superior Court ("<i>Martinez</i> Individual Action") 3. <i>Martinez v. MasterCorp Commercial Services, LLC</i>, Case No. 30-2025-01463889-CU-OE-CXC, pending in Orange County Superior Court ("<i>Martinez</i> PAGA Action") 4. <i>Tate v. MasterCorp Commercial Services, LLC</i>, Case No. CU0001953, pending in Nevada County Superior Court ("<i>Tate</i> PAGA Action")

	5. <i>Figueroa v. MasterCorp, Inc., et al.</i>, Case No. CVRI2502490, pending in Riverside County Superior Court ("<i>Figueroa</i> Class and PAGA Action") On December 29, 2025, Petitioner filed Notices of Submission of Petition for Coordination in all five actions. (ROA 14-18.) On December 22, 2025, the Judicial Council issued an Order Assigning Coordination Motion Judge and identifying the matter as JCCP 5429. (ROA 10.) On December 30, 2025, the Presiding Judge of Orange County Superior Court issued an Order Assigning Coordination Motion Judge and assigned the matter to Department CX103. (ROA 11.) The alleged Labor Code violations in these actions include failure to pay overtime wages, failure to provide meal periods, failure to authorize and permit rest periods, failure to pay minimum wages, failure to timely pay wages upon termination, and failure to provide complete and accurate wage statements. Additionally, four of the five actions include overlap in allegations of failure to keep complete and accurate payroll records, failure to reimburse for business related expenses, and claims under the Private Attorneys General Act of 2004 ("PAGA"). Here, the threshold requirement that all of the actions to be coordinated are complex has not been met. "A petition for coordination, or a motion for permission to submit a petition, shall be supported by a declaration stating facts showing that the actions are complex . . ." (CCP § 404.) A "complex case" is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel. (CRC, R. 3.400(a).) In deciding whether an action is a complex case . . . the court must consider, among other things, whether the action is likely to involve: (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; (2) Management of a large number of witnesses or a substantial amount of documentary evidence; (3) Management of a large number of separately represented parties;
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		(4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or (5) Substantial postjudgment judicial supervision. (CRC, R. 3.400(b).) Generally, “an action is provisionally a complex case if it involves . . . [c]laims involving class actions[.]” (C.R.C., R. 3.400(c)(6).) Here, Petitioner’s PAGA Action (the <i>Romero</i> PAGA Action) has not been designated complex and there is no evidence that Petitioner ever sought to have the action deemed complex. It is undisputed that Petitioner designated her PAGA Action as "Not Complex" under Rule 3.400 of the California Rules of Court on the Civil Case Cover Sheet she filed. (Gitig Dec., Ex. 3.) California Rule of Court, Rule 3.400(c) and Los Angeles County Superior Court Local Rule 3-3(k)(8) provide and recognize that class actions are provisionally complex, but PAGA actions are not presumptively complex. Petitioner has also failed to demonstrate that her PAGA action should be deemed complex. Petitioner has not shown that her PAGA Action will require “exceptional judicial management.” (CRC, R. 3.400(a).) Petitioner vaguely asserts that her action will involve numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve, the management of a potentially large number of witnesses and a substantial amount of documentary evidence, and coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court. However, Petitioner provides no facts to support these assertions and fails to explain why Petitioner has not asked the court to deem the matter complex. Accordingly, the Petition to Coordinate is denied on the grounds that not all of the actions sought to be coordinated are complex. In addition, Petitioner has not demonstrated that coordination of these five actions would promote the ends of justice. Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel;
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		the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.” (CCP § 404.1.) First, Petitioner has not adequately demonstrated that common questions of fact or law predominate these five actions. Petitioner offers only speculation as to the potential waste of judicial resources, and the potential for duplicative and/or inconsistent rulings. While these actions may involve similar Labor Code violations, the nature of each of these actions are distinct and Petitioner has not demonstrated that whatever overlap in questions of law and fact between them would benefit from coordination. The <i>Romero</i> and <i>Figueroa</i> actions are asserted against both Defendant MasterCorp Commercial Services, LLC (“MCS”) and MasterCorp, Inc. (“MCORP”), whereas the <i>Martinez</i> actions are asserted only as against MCS, and the <i>Tate</i> action is asserted against only MCORP. As there is no showing that these employers implement the same policies and practices, the different actions would lead to different, not common, questions of fact as to these employers. Further, the types of claims asserted in each action are distinct. The <i>Martinez</i> Individual Action only concerns individual wage and hour claims. The <i>Romero</i> PAGA Action, <i>Martinez</i> PAGA Action, and <i>Tate</i> PAGA Action concern only PAGA claims. The <i>Figueroa</i> PAGA and Class Action is the only action involving class claims. Thus, each action will involve different questions of fact and law based on the type of claim asserted. At a minimum, motion practice and the level and type of proof required will vary in each action. To the extent there is an overlap between the cases, a stay would be a more appropriate means to prevent inconsistent rulings and avoid waste of judicial resources than coordination. For example, courts have denied petitions for coordination if a case to be coordinated “was not complex,” when “common questions of fact and law did not predominate,” when one case “was at a more advanced stage in the litigation,” when “the convenience of the parties, witnesses, and counsel did not favor coordination,” when a settlement in one of the cases “would resolve th[e] case [to be coordinated],” and when “the stay of petitioners’ case meant
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		that coordination was not required for judicial economy or to avoid duplicative rulings.” (<i>Shaw v. Superior Ct. of Contra Costa Cnty.</i> (2022) 78 Cal. App. 5th 245, 252–53 [emphasis added]; <i>see also Turrieta v. Lyft, Inc.</i> (2024) 16 Cal. 5th 664, 677 [noting that a trial court ruled that coordination would not promote the ends of justice when the actions to be coordinated were already “stayed for all purposes.”].) Second, Petitioner has not shown that the convenience of parties, witnesses, and counsel would be promoted by coordination, or that the relative development of the actions support coordination. Due to the varying procedural postures of each of these actions, coordination would not benefit these actions. There are pending motions to compel arbitration in the <i>Romero</i> PAGA Action and the <i>Figueroa</i> Class and PAGA Action. The <i>Tate</i> PAGA Action is stayed and scheduled for mediation on July 21, 2026. Most importantly for Petitioner’s PAGA Action, the <i>Martinez</i> actions have settled following mediation, and, if approved by the court, would foreclose Petitioner’s PAGA claims at least as to MCS. Third, in light of the procedural posture of each of the five actions, coordination would impede settlement rather than increase the likelihood of settlement of the actions without further litigation. Based on the foregoing, the Petition for Coordination is denied on the additional ground that it would not promote the ends of justice. Petitioner is ordered to give notice of this ruling.
14	30-2021-01195763 Redfeather vs. Embee Processing, LLC	Plaintiffs Corina Christina Redfeather, Marcelino Peralta Vallejo, and Jose Peralta Vallejo’s (collectively, “Plaintiffs”) Motion for Class Certification is DENIED. “The party advocating class treatment must demonstrate the existence of an ascertainable and sufficiently numerous class, a well-defined community of interest, and substantial benefits from certification that render proceeding as a class superior to the alternatives. . . . In turn, the community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (<i>Brinker Restaurant</i>

		<i>Corp. v. Superior Court</i> (2012) 53 Cal.4th 1004, 1021 [internal quotations and citations omitted].) These elements are typically referred to as: (1) ascertainability; (2) numerosity; (3) commonality; (4) typicality; (5) adequacy; and (6) superiority. (See e.g. <i>Capitol People First v. State Dept. of Developmental Services</i> (2007) 155 Cal.App.4th 676, 681.) Plaintiffs bear the burden of proof on these elements. This must be established by admissible evidence; the parties may not rely on allegations in their complaint. (<i>Soderstedt v. CBIZ Southern Calif., LLC</i> (2011) 197 Cal.App.4th 133, 154-155 [where plaintiffs submitted only 3 declarations of proposed class members, in the absence of admissible evidence re size of class, moving party failed to meet burden to show numerosity]; <i>Barriga v. 99 Cents Only Stores LLC</i> (2020) 51 Cal.App.5th 299, 322-323 [trial court has duty to scrutinize declarations re class certification to ensure they are not the product of “coercion or deception”].) “A certification motion ‘does not ask whether an action is legally or factually meritorious . . .’ . . . but rather whether the common issues it presents ‘are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.’” (<i>Sarun v. Dignity Health</i> (2019) 41 Cal. App. 5th 1119, 1131.) “[C]ourts are not limited to the class definition proposed in the certification motion.” (<i>Id.</i> at 1137.) “If necessary to preserve the case as a class action, a court may redefine the class to reduce or eliminate an ascertainability or manageability problem.” (<i>Id.</i> at 1138.) <u>I. Motion for Class Certification</u> The court finds that Plaintiffs have failed to carry their burden to prove that the relevant factors support class certification. Plaintiffs ask that the court certify the following Class and Subclasses: a. Class: All current and former hourly-paid or non-exempt employees employed by Defendants Embee Processing, LLC, All Metals Processing of Orange County, LLC, Noble Aerospace, LLC, Embee Acquisition Holdings, Inc., All Metals Processing Holdings, LLC, and Michael Coburn (“Defendants”) within the State of California at any time during the period from April 16, 2017 up to the deadline, to be determined by the Court at a later date, by which class
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		members may opt-out after being provided notice of certification (the “Class Period”). b. Off The Clock Work Class: All current and former hourly-paid or non-exempt employees employed by Defendants that 1) were suffered or permitted to work off the clock or 2) were under Defendants’ control without being compensated through the Class Period. c. Rounding Subclass: All non-exempt employees at the Stanton, California location who, during the period from April 16, 2017 through December 31, 2019, had their hours on the clock rounded for purposes of determining compensable time. d. Rounded Meal Break Subclass: All non-exempt hourly employees of one or more Defendants within the State of California who, during the period from April 16, 2017 through December 31, 2019, had one or more recorded meal periods that, based on rounded timestamps, appeared to be 30 minutes in length and to occur within the first 5 hours on the clock, but that, based on unrounded timestamps, were less than 30 minutes and/or began after more than 5 hours on the clock. e. Meal Period Class: All non-exempt employees of one or more Defendants within the State of California who, during the period April 16, 2017 through the disposition of this case, were not provided at least one legally-compliant meal break on shifts over 5 hours. f. Partially Controlled Meal Period Subclass: All non-exempt employees of one or more Defendants within the State of California who, during the period from April 16, 2017 through the disposition of this case, worked in Defendants’ production departments recorded one or more meal periods of at least 30 minutes in length included less than 30 minutes of an uncontrolled, uninterrupted, duty-free meal period. g. Second Meal Period Subclass: All non-exempt employees of one or more Defendants within the State of California who, during the period April 16, 2017 through the disposition of this case, were not provided with a second legally compliant meal break on shifts over 10 hours. h. On-Site Rest Break Class: All non-exempt employees of one or more Defendants who, during the period from April 16, 2017 through July 1, 2021, were prohibited from leaving the premises during their rest breaks.
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| | <ul style="list-style-type: none">i. Rest Break Subclass: All hourly non-exempt employees of Defendants who worked at least one 3.5 hour shift but were not fully relieved of their work related duties to take all full uninterrupted ten minute rest breaks they were entitled to from April 16, 2017 through the disposition of this case.j. Derivative Wage Statement Class: All non-exempt employees of one or more Defendants within the State of California who, during at least one pay period from April 16, 2020 through the disposition of this case, did not receive all wages earned.k. Derivative Waiting Time Class: All non-exempt hourly employees of one or more Defendants in California who, at any time from April 16, 2018 through the date of class certification, separated from employment and were not paid all wages earned at the time of separation.l. Unfair Competition Law Class: All non-exempt hourly employees of one or more Defendants in California who, at any time from April 16, 2017 through the disposition of this case experienced at least one of the labor code violations alleged above. |
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Plaintiffs also ask that the court appoint Plaintiffs Corina Redfeather, Marcelino Peralta Vallejo, and Jose Peralta Vallejo as Class Representatives, and their counsel, David D. Bibiyan, Sarah H. Cohen, and Rafael Yedoyan of Bibiyan Law Group, P.C. and Scott Wheeler and Justin Wheeler of The Wheeler Law Firm, APC, as Class Counsel.

A. Ascertainability & Numerosity

Plaintiffs set forth facts to support the ascertainability and numerosity of only the On-Site Rest Break Class (which Plaintiffs call the “on duty rest break class”), the Rounding Subclass, and the Partially Controlled Meal Break Subclass. Plaintiffs do not address the ascertainability and numerosity of the off-the-clock work class, rounded meal break subclass, meal period class, second meal period class, rest break subclass, derivative wage statement class, derivative waiting time class, or unfair competition law class. Thus, Plaintiffs’ class certification motion is deficient on this ground.

B. Typicality & Adequacy

		Plaintiffs contend that their claims are typical of the class and subclasses because they are subject to the same policies. Plaintiffs contend that Plaintiff's Counsel is experienced in California wage and hour class actions and is qualified to advocate on behalf of the Class's best interests. Plaintiffs assert that Plaintiffs are adequate class representative, as they have no interests adverse to the Class, and have demonstrated that they will and have put the interests of the Class before theirs. However, Defendants have demonstrated that the nature of the positions held by each Plaintiff and the application of the policies for their meal and rest break periods, whether they were subject to the bell system for breaks, as well as the locations of their employment, and whether they were employed by Embee or AMPOC demonstrates that their claims are not likely to be typical of the class. Defendants argue that Plaintiffs cannot adequately represent the interests of class members who have signed releases and/or have signed arbitration agreements. Defendants state that 752 putative class members voluntarily released their claims, 179 from AMPOC and 573 from Embee, or roughly 66% of putative class members. Further, 714 employees signed arbitration agreements requiring arbitration of claims on an individual basis and waiving class claims, 95 employees from AMPOC and 619 from Embee. Plaintiffs challenge the validity of these releases and agreements, but this simply demonstrates that Plaintiffs may not share the same interests as the rest of the class. "Adequacy of representation depends on whether the plaintiff's attorney is qualified to conduct the proposed litigation and the plaintiff's interests are not antagonistic to the interests of the class." (<i>McGhee v. Bank of Am.</i> (1976) 60 Cal. App. 3d 442, 450.) Accordingly, class certification is unwarranted based on these factors. C. <u>Commonality</u> "The 'ultimate question' the element of predominance presents is whether 'the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be advantageous to the judicial process and to the litigants.' [Citations.]
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		The answer hinges on ‘whether the theory of recovery advanced by the proponents of certification is, as an analytical matter, likely to prove amenable to class treatment.’ [Citation.] A court must examine the allegations of the complaint and supporting declarations [citation] and consider whether the legal and factual issues they present are such that their resolution in a single class proceeding would be both desirable and feasible. ‘As a general rule if the defendant's liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages.’” (<i>Brinker Restaurant Corp. v. Superior Court</i> (2012) 53 Cal.4th 1004, 1021–1022.) But a class action cannot be maintained where the existence of damage, the cause of the damage, and the extent of damage have to be determined on a case-by-case basis, even if there are some common questions. (<i>Basurco v. 21st Century Ins. Co.</i> (2003) 108 Cal.App.4th 110, 119.) Plaintiffs argue that the claims at issue in this action are based on uniform policies and practices affecting all class members and thus are amendable to class treatment. However, Defendants have demonstrated that the policies at issue are not uniform in practice, and that individualized issues predominate over common questions of fact and law. <u>Timeclocks/Standing in Line</u> Plaintiffs point to Defendants’ alleged failure to install an adequate number of timeclocks that would require employees to wait in line to clock in. Plaintiffs contend that employees came into work several minutes before their shift was scheduled to start to ensure they clocked in on time. <u>Walking Time</u> Plaintiffs also assert that employee meal breaks were shortened due to the time it took to walk to a suitable break area. Plaintiffs rely on the survey data analyzed by their expert, Dr. Ingersoll. <u>Off-the-Clock Work</u>
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		Plaintiffs assert that employees would spend several minutes under Defendants' control during their meal breaks off the clock, both walking to their suitable meal break areas while on their meal breaks and waiting in line to clock in. Plaintiffs claim that because of Defendants meal break policies, the way their campuses were structured, and the number of timeclocks they chose to include on their campuses, every single employee spent time under Defendants' control without compensation. <u>Meal Period Policy</u> Plaintiffs claim Defendants have a uniform policy and procedure requiring employees to end their meal breaks early so that employees can clock back in on time from their meal breaks, and which failed to comply with California law. Plaintiffs claim that Defendants have a policy and practice of requiring employees to take short, late, or interrupted meal periods. Plaintiffs also claim that Defendants have a policy and practice of failing to pay meal period premiums. Plaintiffs also argue that Defendants have a policy and practice of failing to provide employees with a second meal break when they work more than 10 hours in a shift. Plaintiffs claim that the employee records show that meal breaks were late, short or missing, second meals were rarely provided, meal breaks were rounded to the detriment of employees, and meal premiums for missed meal breaks were not paid. Plaintiffs rely upon the analysis by their expert, Dr. Kriegler. <u>Rest Break Policy</u> Plaintiffs claim Defendants have a uniform rest break policy prior to July 1, 2021 that required employees to remain on premises during their breaks, and which failed to comply with California law. Plaintiffs claim that Defendants have a policy and practice of requiring employees to take short, late, or interrupted rest periods. Plaintiffs also claim that Defendants have a policy and practice of failing to pay rest break premiums, noting there is no evidence Defendants have ever paid a rest break premium. Plaintiffs rely upon the survey data analyzed by their expert, Dr. Ingersoll. <u>Uniform Rounding Policy</u> Plaintiffs claim Defendants have a uniform rounding policy that rounded hours recorded by employees. Plaintiffs claim
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		that based on the analysis of their expert, Dr. Kriegler, Defendants' rounding policies caused a net underpayment for employees and was not facially neutral. Defendants point out that each work location has multiple buildings where production employees work on an open floor, and administrative/clerical employees are spread throughout different offices and cubicles, and thus, the various facilities and locations create numerous variables that relate to each employee's experience related to time clocking and meal and rest breaks. Defendants also explain that their employees work a wide variety of different positions, noting that, while much of the workforce are production employees who work on the production floor, some are back end office support who work in a separate office area with more autonomy over their break schedule. During the relevant period, Embee had non-exempt employees in 23 different departments, and AMPOC had employees in 13 departments. Defendants provide evidence that employees did not experience uniform policies with respect to the policies and practices at issue. Defendants submit 45 current and former employee declarations that all confirm the employees were aware of Defendants' policies and practices requiring compliant meal and rest breaks and prohibiting off-the-clock work and were provided their breaks. The declarants state that if their records reflect any non-compliant meal break, it was due to their own choices and clocking habits, and not because Defendants failed to provide them with their breaks. All of these declarants deny off-the-clock work and deny that time clock locations and/or lines at time clocks resulted in short breaks or unpaid time. The employee declarants made statements similar to the following: • My practice is to clock in immediately before I start working. I have never performed any duties prior to clocking in for the start of my shift. At the end of my shift, I clock out and leave. I do not perform any duties after I clock out. I have never been asked to perform work while not clocked in, nor have I performed any work while not clocked in. It is my understanding that performing work without being clocked in or "off-the-clock" is against company policy and is strictly prohibited.
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		• I always take at least a 30-minute meal break on days I work at least five hours. I always take my meal break no later than the end of my fifth hour of work. If my shift is no longer than six hours, such as occasionally on Saturdays, I may choose to waive my meal break. If my time records reflect a late meal break, it is because I chose to clock out after my fifth hour worked, and not because anyone required that I take it late. The same is true for any time punches that reflect a meal break that is shorter than 30 minutes. No one has ever required that I take a short meal break. • I clock out for my meal breaks before I begin my break. There are multiple time clocks and I am free to use any time clock located throughout EMBEE. • I do not perform any duties during the time that I leave my work area and walk to the time clock. It takes me seconds to walk to a time clock. I have not had to wait in line to clock in or out at a time clock. If I have to wait in line (which I never do), I would not be required or even asked to do work during this time. I would be free to do whatever I want during this time. • I remember one time that I forget to clock in or out for my meal. This is because I personally forgot because I was going to get lunch, and not because of work-related duties. I always get an opportunity to take a full 30-minute meal break regardless of which time clock I use. I do not get disciplined if I am away from my workstation for longer than 30 minutes. In other words, EMBEE allows us sufficient time to clock out and back in for our meal breaks from any time clock while taking a full 30 minute meal break. • When I take my meal break, I usually go into the break room and sit and eat. I understand that I am permitted to leave the premises during my meal breaks. • There are no time constraints on my ability to do my job duties, such as coordinating work orders, that would prevent me from timely taking any of my prescheduled breaks. In other words, there is no reason that I cannot take timely breaks due to my work-related duties. • I understand that EMBEE permits me to take a paid 10-minute uninterrupted and duty-free rest break for every four hours that I work. I understand that I am permitted to leave the premises during my rest breaks. During my entire employment at EMBEE, no one has ever told me that I could not leave the premises during my rest
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		breaks. I always take my rest breaks. During my rest breaks I usually go to the tables outside the Penetrant Department. No one has ever asked me to come back from a rest break early. No one has ever told me I could not take a rest break or discouraged me from taking a rest break. • None of my supervisors or leads have ever asked me to perform work while I was clocked out, nor have I, for any reason, performed any work for which I was not paid. And, none of my supervisors or leads have ever interrupted my breaks or told me that I had to work during my breaks or while not clocked in. • I have always found that my paychecks and paystubs accurately reflect the number of hours that I worked, and the amount of overtime that I worked, if any, my pay rate, and the total pay that I was due for that pay period. I understand that if I believe there was an error in my paycheck, I could report it to my supervisor, manager, the payroll department, or Human Resources to resolve any discrepancy. (<i>See, e.g. Orellana Dec. ¶¶ 5-16.</i>) These employee declarants state: “I am freely and voluntarily providing this Declaration. I understand and agree that there would be no negative consequences in my employment with EMBEE if I decided not to provide this Declaration, and there will be no positive consequences in my employment for deciding to provide this Declaration. I have not been offered any money, promised any benefits or career advancement, or been threatened or coerced in any way by anyone at EMBEE to get me to sign this Declaration. I have been informed that I should review this Declaration carefully to be sure that it is complete accurate and true, and that I may make any changes to the Declaration that I feel are needed to make sure that it is completely accurate and true.” (<i>Id.</i> ¶ 19.) These declarations demonstrate that individualized inquiries would need to be made regarding whether employees had to stand in line to clock in or whether they clocked in early voluntarily, whether employees would have to walk significant distances to suitable break areas and how long it would take those employees, whether employees were allowed to go off site for breaks, and whether employees were in fact pressured to take shorter breaks, late breaks, or miss their breaks.
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		Defendants also argue that their meal and rest break policies were lawful. “An employer’s duty with respect to meal breaks . . . is an obligation to provide a meal period to its employees.” (<i>Brinker Rest. Corp. v. Superior Ct.</i> (2012) 53 Cal. 4th 1004, 1040.) “The employer satisfies this obligation if it relieves its employees of all duty, relinquishes control over their activities and permits them a reasonable opportunity to take an uninterrupted 30-minute break, and does not impede or discourage them from doing so.” (<i>Id.</i>) “[T]he employer is not obligated to police meal breaks and ensure no work thereafter is performed.” (<i>Id.</i>) “Bona fide relief from duty and the relinquishing of control satisfies the employer’s obligations, and work by a relieved employee during a meal break does not thereby place the employer in violation of its obligations and create liability for premium pay[.]” (<i>Id.</i> at 1040-1041.) Class certification is not appropriate if “the only formal [company] off-the-clock policy submitted disavows such work, consistent with state law,” and there is no “substantial evidence of a systematic company policy to pressure or require employees to work off-the-clock[.]” (<i>Brinker Rest. Corp. v. Superior Ct.</i> (2012) 53 Cal. 4th 1004, 1051.) “[T]hat employees are clocked out creates a presumption they are doing no work, a presumption [a plaintiff] and the putative class members have the burden to rebut.” (<i>Id.</i>) “[L]iability is contingent on proof [the employer] knew or should have known off-the-clock work was occurring.” (<i>Id.</i>) This liability cannot be established based “anecdotal evidence of a handful of individual instances in which employees worked off-the-clock, with or without knowledge or awareness by [their] supervisors.” (<i>Id.</i> at 1052.) “[W]here no substantial evidence points to a uniform, companywide policy, proof of off-the-clock liability would have had to continue in an employee-by-employee fashion, demonstrating who worked off the clock, how long they worked, and whether [the employer] knew or should have known of their work,” and the class cannot be certified. (<i>Id.</i>) Defendants state that their written policies permitted employees to take their meal and rest breaks and there is no evidence of any uniform policies depriving employees of such breaks. Defendants point out there was no policy requiring employees to be back at their workstations at exactly the thirty-minute mark. Embee’s meal period policy states employee must clock out at the beginning of their meal break and not to clock in until “after taking a full (30) minute break, and may
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		not clock in before completing a full 30-minute break.” Accordingly, Defendants contend that Plaintiffs’ claim that employees clocked in early from meal breaks so that they would be on time is incorrect. Defendants also state that putative class members can voluntarily waive meal breaks for shifts that are six hours or less (which Defendants claim Plaintiffs did), and waive their second meal breaks for shifts between 10-12 hours if they did not waive their first meal break (which Defendants claim many putative class members did). “The employer is not liable if the employee chooses to take a short or delayed meal period or no meal period at all.” (<i>Donohue v. AMN Servs., LLC</i> (2021) 11 Cal. 5th 58, 78.) “[T]he employer's duty is to ensure that it provides the employee with bona fide relief from duty and that this is accurately reflected in the employer's time records.” (<i>Id.</i>) “If time records show noncompliant meal periods, then a rebuttable presumption of liability arises.” (<i>Id.</i>) “[T]he employer may rebut the presumption with evidence of bona fide relief from duty or proper compensation.” (<i>Id.</i>) Accordingly, the issue of break waivers would introduce individualized inquiries. Further, as to rest breaks, Defendants contend that because rest breaks are not recorded in the time punch data, individualized inquiries are necessary and rest break liability simply cannot be established through common evidence. Defendants also note that since employees working in certain departments have autonomy to take their breaks, the circumstances differ substantially among the putative class members. Defendants also point out that AMPOC has 8 timeclocks and Embee has 17 timeclocks, and Plaintiff’s claim that this number is inadequate is unsupported by admissible evidence as neither of Plaintiffs’ experts had any idea as to the number of timeclocks at each facility or the number of employees that were clocking in at each time clock. The court also finds the expert opinion of Dr. Ingersoll unreliable because he obtained responses from only 24 out of 481 putative class members, and the survey consisted of non-random, self-selected set of responses, his methodology was constrained by time limitations, and as the survey was conducted by staff members who work for Plaintiffs’ counsel. Accordingly, his opinions on the uniformity of Defendants’ policies hold little weight.
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		The court finds that Defendants have adequately demonstrated that Plaintiffs cannot establish commonality for the class claims in light of the wide variety of policies dependent on the positions held by each employee, the location each employee worked, whether or not they had discretion to take breaks, and whether they signed waivers. There is also lack of evidence of any common policy to pressure employees to do off-the-clock work, work during breaks, skip breaks or take short breaks. Accordingly, class certification is not appropriate for these classes and subclasses. In light of the predominately individualized issues at play, the court finds that class certification is unwarranted due to lack of commonality. <u>D. Superiority & Manageability</u> In support of these elements, Plaintiffs only vaguely assert that: “A class action here is far more efficient than having hundreds or thousands of individual lawsuits filed in an already congested court system. A class action constitutes the superior method, and a class action is a fair and efficient way to adjudicate all putative class members’ claims.” (Mot. at p. 21.) Plaintiffs provide no facts or evidence in support of these claims. Plaintiffs claim that liability will be determined by issues of fact that are common to all Class Members. Plaintiffs state that damages for each of the Class and Subclass claims will be based on an analysis of Defendants’ records, whether they be the time and pay records or the overall policies affecting each and every single employee. Plaintiffs also intend to rely on the use of surveys and written testimony from class members. However, as stated above, individualized issues predominate, thus undermining the usefulness of survey evidence or anecdotal testimony. Defendants also point out that Plaintiffs failed to provide a viable trial plan. “If statistical evidence will comprise part of the proof on class action claims, the court should consider <i>at the certification stage</i> whether a trial plan has been developed to address its use.” (<i>Duran v. U.S. Bank Nat’l Assn.</i> (2014) 59 Cal. 4th 1, 31.) “A trial plan describing the statistical proof a party anticipates will weigh in favor of granting class certification if it shows how individual issues can be managed at trial.” (<i>Id.</i>) “Rather than accepting assurances that a
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		statistical plan will eventually be developed, trial courts would be well advised to obtain such a plan before deciding to certify a class action.” (<i>Id.</i>) “[D]ecertification must be ordered whenever a trial plan proves unworkable.” (<i>Id.</i>) When a court finds that “survey data was unreliable . . . and unreliable as statistical support for selecting a representative witness group to testify as to liability or restitution without causing the inquiry to devolve into a multiplicity of individual mini trials,” taking into account a defendant’s “right to call witnesses outside the sample to establish its affirmative defense,” denial of class certification is warranted. (<i>Duran v. U.S. Bank Nat’l Assn.</i> (2018) 19 Cal. App. 5th 630, 650.) Here, the court finds that the evidence and opinions offered by Plaintiffs’ experts, Dr. Ingersoll and Dr. Krieger, are unreliable and/or insufficient to demonstrate that the claims in this action can be managed on a class-wide basis. Accordingly, class certification is unwarranted based on these factors. Based on the foregoing, this Motion is denied. II. <u>Evidentiary Objections</u> The court SUSTAINS Plaintiffs’ Objection Nos. 19-20 to the Declaration of Plaintiffs’ expert, Dr. William Ingersoll, and OVERRULES all remaining objections to the declaration. The court OVERRULES Plaintiffs’ Objections to the Declaration of Plaintiffs’ expert, Dr. Brian Kriegler. The court SUSTAINS Defendants’ objections to the Declarations of Jose Abraham Gonzalez Hernandez, Marcelino Peralta Vallejo (“Marcelino”) and Jose A. Peralta Vallejo (“Jose”) because they failed to include a translation certification under oath as required by CRC, Rule 3.1110(g). The court OVERRULES Defendants’ objections to the Declarations of Christina Redfeather and Frank Olvera. The court OVERRULES Defendants’ objections to the declaration of Anthony Loberg and Jose Abraham Gonzalez Hernandez to the extent they are based on these declarants’ refusal to sit for deposition as that does not render these declarations per se inadmissible. “[A] party may only introduce a witness's declaration if the opposing party had the opportunity to cross-examine the witness at deposition or
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		could require the witness to be subject to cross-examination at trial.” (<i>Target Nat’l Bank v. Rocha</i> (2013) 216 Cal. App. 4th Supp. 1, 7.) Here, Defendants have not demonstrated that these declarations are unavailable to be cross-examined at trial. The Declaration of Alberto Mosqueda Cruz was withdrawn through Plaintiffs’ counsel on March 16, 2026, so the court did not consider this declaration. The court OVERRULES Plaintiffs’ objections to the Declaration of Defendants’ expert, Levon Massmanian. The court SUSTAINS Plaintiffs’ objections to the Declarations of Imelda Landeros and Maria Robledo Perez on the grounds that their declarations are in English, when they are unable to read and write in English. The court OVERRULES Plaintiffs’ remaining objections to the employee declarations provided by Defendants in support of their opposition to this Motion. The court OVERRULES Plaintiffs’ objections to the Declaration of Alma Beatriz Cervantes, AMPOC and Embee’s HR Representative. III. <u>Request for Judicial Notice</u> The court DENIES Defendants’ request for judicial notice of a motion and order striking the testimony of Plaintiffs’ expert, Dr. Kriegler in another cases as it is irrelevant to the issues in this case. Courts are not required to take judicial notice of items if they are not “necessary, helpful, or relevant.” (<i>Jordache Enters., Inc. v. Brobeck, Phleger & Harrison</i> (1998) 18 Cal. 4th 739, 748.) Plaintiffs are ordered to give notice of this ruling.
15	30-2023-01347301 Oglander vs. Tax Rise, Inc.	Plaintiff Daniel Oglander’s (“Plaintiff”) Motion to Compel Defendant Essam Abdullah’s (“Defendant” or “Abdullah”) Further Responses to Requests for Production, Set Three is GRANTED IN PART as to Request For Production (“RFP”) No. 36 (as outlined below), and GRANTED as to RFP Nos. 27-29, and 33-35, and 37-39. IT IS ORDERED THAT Defendant shall provide Plaintiff with further, code-compliant responses to Plaintiff’s RFP Nos. 27-29, and 33-39, and any

		non-privileged responsive documents, within thirty (30) days of this ruling. The SAC alleges that “Abdullah is integrally involved in managing and running TaxRise and participated directly in the unfair business practices and false advertising addressed herein.” (SAC ¶ 10.) It further alleges that: Defendant Abdullah directly participated in the UCL violations at issue herein, by, among other things, conceiving of TaxRise’s business strategy and marketing, devising or approving TaxRise’s sales practices, making or approving the decision not to follow the HSSA and/or to issue full refunds to Canceled Agreement Sub-Class members who sought cancellation, and preparing, participating in the preparation of, and approving the content of TaxRise’s misleading service agreements containing misleading legal jargon, which continue Abdullah’s past pattern, condemned by the State, of misusing legal jargon to deceive consumers. (SAC ¶ 147.) The discovery requests seek documents and communications relevant to the financial relationship between entity defendants TaxRise and MIADVG, the management of these entities, and witness contact information regarding the tax relief services provided, as well as the marketing and communication with customers regarding the services provided. The court finds that the subject discovery is relevant to these allegations and are likely to lead to the discovery of admissible evidence, and that Plaintiff has demonstrated good cause for further responses to these requests. Defendant provided only boilerplate objections to each of these requests. Before turning to the specific requests, the court shall address some of Defendant’s broader objections. Defendant argues that the subject discovery is impermissibly overbroad, but cites to a case that is clearly distinguishable as it involved a clearly overbroad discovery request on a non-party that was untethered to the claims in the case. <i>Calcor Space Facility, Inc. v. Superior Ct.</i> (1997) 53 Cal. App. 4th 216, 222, involved “a blanket demand” to essentially “[p]roduce everything in your possession which in any way relates to gun mounts.” The court noted that request required the responding party “to search its extensive files, at many locations, to see what it can find to fit [the plaintiff’s] definitions, instructions and categories.” (<i>Id.</i>) The court found such discovery improper, noting that “particularly when
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		dealing with an entity which is not even a party to the litigation, the court should attempt to structure discovery in a manner which is least burdensome to such an entity.” (<i>Id.</i> [emphasis added].) The court also noted that the plaintiff’s “six pages of ‘definitions’ and ‘instructions’ [was] particularly obnoxious.” (<i>Id.</i> at 223.) The court noted that “[a]s between parties to litigation and nonparties, the burden of discovery should be placed on the latter only if the former do not possess the material sought to be discovered.” (<i>Id.</i> at 225.) Defendant contends that Plaintiff is required to produce evidence to support Plaintiff’s explanation of the relevance and good cause for the requested discovery. However, the fact-specific showing of relevance does not, as a matter of law, require evidence such as declarations, but can be based upon the nature of the claims at issue. (<i>Kirkland v. Superior Ct.</i> (2002) 95 Cal. App. 4th 92, 97 [finding that discovery regarding an SEC investigation that disclosed materials regarding state of mind and relevant transactions was permissible based on the fraud claims at issue].) Defendant also argues that the discovery is impermissible because the requests were already propounded on the entity defendants, but provides no basis for denying Plaintiff’s discovery requests for this reason alone. “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (CCP § 2017.020(a).) Defendant has not demonstrated that the burden outweighs the need for the requested discovery. Defendant argues that some of the requests implicate confidential business interests for the entity defendants. However, Defendant has not shown that those interests outweigh Plaintiff’s need for the discovery. “[T]he party claiming the privilege [based on trade secret] has the burden of establishing its existence.” (<i>Bridgestone/Firestone, Inc. v. Superior Ct.</i> (1992) 7 Cal. App. 4th 1384, 1393.) “Thereafter, the party seeking discovery must make a prima facie, particularized showing that the information sought is relevant and necessary to the proof of, or defense against, a material element of one or more causes of action presented in the case, and that it is reasonable to conclude that the information sought is essential to a fair resolution of the lawsuit.” (<i>Id.</i>) “It is then up to the holder of the privilege to demonstrate any
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		claimed disadvantages of a protective order.” (<i>Id.</i>) “[T]he burden is upon the trade secret claimant to demonstrate that an alternative to disclosure will not be unduly burdensome to the opposing side and that it will maintain the same fair balance in the litigation that would have been achieved by disclosure.” (<i>Id.</i>) Defendant has not carried his initial burden of showing any privilege, as he makes only vague statements about potential proprietary information that may be responsive to the requests. Even if privilege was implicated by the discovery requests, Plaintiff has made a prima facie showing of relevance, and Defendant has not shown that any alternative to disclosure would be justified. The court will now turn to the specific discovery requests. RFP Nos. 27-29 seek documents and communications concerning the financial relationship between TaxRise and MIADVG, including MIADVG’s compensation from TaxRise from customer services fees or otherwise. Plaintiff states that the requested documents are relevant to Plaintiff’s allegations that MIADVG aided and abetted TaxRise’s fraudulent conduct and violated the CLRA and UCL by, among other things, transmitting service agreements to class members. Plaintiff contends that the requested materials are relevant to the extent of MIADVG’s knowledge and participation in the alleged fraudulent scheme, and are relevant to Plaintiff’s request for restitutionary disgorgement of all fees and monies paid to Defendants in connection with TaxRise’s “tax relief” services as they will reflect how much of the service fees class members paid TaxRise went to MIADVG. Defendant complains that this request is not tied specifically to Plaintiff’s transaction, but as this is a class action, discovery is not limited to Plaintiff’s specific transaction. The court finds that Plaintiff has established good cause for the discovery and a further response is required. RFP Nos. 33-35 seek documents supporting Abdullah’s sworn statements that he did not directly manage TaxRise or MIADVG, including documents identifying persons other than Defendant who directly managed these companies. Plaintiff asserts that the requested documents are directly relevant to Plaintiff’s fraud, CLRA, and UCL claims against Abdullah, which are based on Abdullah’s alleged direct participation in TaxRise’s unlawful sales practices. Plaintiff contends that to the extent persons other than Abdullah directly managed
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		TaxRise and/or MIADVG, the identity of such persons is relevant because they have knowledge of discoverable matter including the policies and practices followed by those organizations and the identity and responsibilities of persons within these organizations who were involved in or possess information about the alleged misconduct. Plaintiff asserts that such information is relevant to Plaintiff's claims, class certification (e.g., typicality, commonality, and predominance), Defendants' affirmative defenses (e.g., bona fide error, fair competition, and reasonableness and good faith), and identifying Doe Defendants. The court finds that Plaintiff has established good cause for the discovery and a further response is required. RFP No. 36 seeks documents identifying persons other than Abdullah who directly participated in formulating TaxRise's marketing strategies. Plaintiff contends the requested documents are directly relevant to Plaintiff's fraud, CLRA, and UCL claims against Abdullah, which are based on Abdullah's alleged direct participation in TaxRise's unlawful sales practices. Plaintiff asserts that the identity of persons other than Abdullah who participated in formulating TaxRise's marketing strategies is also relevant because such persons have knowledge of discoverable matter including the content, creation, implementation, function, scope, and purpose of TaxRise's sales practices and marketing strategies. Plaintiff argues that the content, creation, implementation, function, scope, and purpose of TaxRise's marketing strategies are relevant to Plaintiff's claims, class certification (e.g., typicality, commonality, and predominance), Defendants' affirmative defenses (e.g., bona fide error, fair competition, and reasonableness and good faith), and identifying Doe Defendants. Defendant complains that the discovery is duplicative of previous discovery, but the court finds that the requests are not duplicative. Plaintiff concedes that this request should be narrowed in time as to the liability period (starting March 14, 2019.) The court finds that Plaintiff has established good cause for the discovery and a further response is required, but the request shall be limited in time to the liability period.
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		RFP No. 37 seeks “All template letters that you approved, signed, sent, or caused to be sent to TaxRise tax relief customers during the APPLICABLE PERIOD.” Plaintiff argues that the requested documents are directly relevant to Plaintiff’s fraud, CLRA, and UCL claims against Abdullah, which are based on Abdullah’s alleged direct participation in TaxRise’s unlawful sales practices. Plaintiff contends that template letters approved or signed by Abdullah are relevant to Abdullah’s knowledge and participation in TaxRise’s fraudulent scheme as well as Abdullah’s intent, willfulness, and credibility. Plaintiff contends that they are also relevant to TaxRise’s liability for false advertising, class certification (e.g., typicality, commonality, and predominance), Defendants’ affirmative defenses (e.g., bona fide error, fair competition, and reasonableness and good faith). Defendant argues that this request is overbroad, but the court finds that it is not overbroad as it is limited to only template letters sent to TaxRise relief customers. The court finds that Plaintiff has established good cause for the discovery and a further response is required. RFP No. 38 seeks “DOCUMENTS sufficient to identify the names and last known addresses, last known phone numbers and last known email addresses of all current and former TaxRise employees who had a role in TaxRise’s tax relief services during the APPLICABLE PERIOD ...” Plaintiff argues that TaxRise employees who had a role in TaxRise’s tax relief services are percipient witnesses with knowledge of discoverable matter, including Defendants’ policies, procedures and practices, Defendants’ management structure, Defendants’ intent, and Defendants’ culpability for the wrongful conduct alleged in the SAC. Defendant also argues that these requests implicate significant privacy rights, but the case cited by Defendant held that such contact information is discoverable. “The disclosure of the names and addresses of potential witnesses is a routine and essential part of pretrial discovery.” (<i>Puerto v. Superior Ct.</i> (2008) 158 Cal. App. 4th 1242, 1249–50.) The right of privacy in the California Constitution (art. I, § 1), “protects the individual's <i>reasonable</i> expectation of privacy against a <i>serious</i> invasion.” (<i>Id.</i> at 1250 [emphasis in original].) “California courts balance the public need against the weight of the right.” (<i>Id.</i>) “[T]he invasion of privacy must be serious in nature, scope, and actual or potential impact.” (<i>Id.</i> at 1251.)
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		However, with respect to the contact information of percipient witnesses, “a percipient witness's willingness to participate in civil discovery has never been considered relevant—witnesses may be compelled to appear and testify whether they want to or not.” (<i>Id.</i> at 1251-1252.) Accordingly, the court finds that the requested discovery does not implicate any privacy concerns that should limit discovery. RFP No. 39 seeks: “DOCUMENTS sufficient to describe the job duties and responsibilities of all TaxRise tax relief-related job positions (e.g., “financial analyst,” “case manager,” “resolution officer”) that have existed at any time during the APPLICABLE PERIOD.” Plaintiff contends that the requested information is relevant to identifying percipient witnesses as knowing the duties assigned to each tax relief-related position will allow Plaintiff to determine which categories of employees are likely to possess discoverable information regarding representations, training, call recording practices, refund policies, and compliance efforts. Plaintiff also contends that the requested information is relevant to class certification concerning whether the alleged misconduct is the product of uniform policies and practices or individualized exercises of discretion. Plaintiff argues that the requested information is also relevant to the liability of individual officers and managers as it is likely to reveal who participated in, authorized, and directed Defendants’ alleged misconduct. Defendant argues that RFP Nos. 38 and 39 are overbroad. However, the requests are limited to employees “who had a role in TaxRise’s tax relief services” and held “tax relief-related job positions.” The court finds that Plaintiff has established good cause for the discovery and a further response is required. Plaintiff is ordered to give notice of this ruling.
16	30-2025-01533351 Bell vs. Veracity Research Co., L.L.C.,	Defendant Veracity Research Co., L.L.C.’s motion to compel arbitration is GRANTED. Plaintiff Tiffany Bell is ordered to arbitrate her individual claims. The class claims are dismissed without prejudice. This case is otherwise STAYED pending completion of arbitration. An ADR Review Hearing is scheduled for February 3, 2027 at 9:00 a.m. The parties must file a Joint Status Report at least 16

		court days before the hearing and may request a continuance if arbitration is not yet complete. Existence of Arbitration Agreement The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i>; <i>Perry v. Thomas</i> (1987) 482 U.S. 483, 492 n.9 (State law applicable to contracts generally governs whether a valid arbitration agreement exists.) While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. <i>Gamboa v. Ne. Cmty. Clinic</i> (2021) 72 Cal.App.5th 158, 164–67. At this step, a movant need not follow the normal procedures of document authentication. <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, 218-219. If the moving party meets its initial burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, if plaintiff presents evidence that no agreement exists, the burden shifts back to the moving party to present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. <i>Gamboa, supra</i>, 72 Cal.App.5th at 164–67. Here, it is undisputed plaintiff signed the “Arbitration Policy” containing the mandatory arbitration agreement (the “Agreement”). ROA 13 Ex. A. Accordingly, the court finds the parties formed an agreement to arbitrate. Federal Arbitration Act
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		The Agreement expressly provides it is governed by the Federal Arbitration Act (“FAA”). ROA 13 Ex. A at 1. Defendant has also presented undisputed evidence it is engaged in interstate commerce. ROA 13 ¶ 3. The court thus finds the FAA applies and plaintiff does not challenge its application. Delegation to Arbitrator Plaintiff raises several enforceability challenges to the Agreement. However, the court finds the parties unambiguously agreed to delegate such questions exclusively to the arbitrator. Under the FAA, parties to an arbitration agreement may delegate the issue of enforceability to the arbitrator. <i>See Rent-A-Center, West, Inc. v. Jackson</i> (2010) 561 U.S. 63, 70-72. Such a delegation, however, must be “clear and unmistakable.” <i>Id.</i> at 70 n.1. Here, the Agreement provides, in pertinent part, that “[t]he Arbitrator shall have the exclusive authority to resolve any dispute relating to the interpretation, applicability, or enforceability of this Agreement; except, however, the preceding sentence shall not apply to the ‘Class Action Waiver’ described in Section 4 below.” ROA 13 Ex. A ¶ 1. Additionally, the Agreement expressly identifies the “applicable rules” are the JAMS employment dispute rules, which provide that the arbitrator shall decide his own jurisdiction. ROA 13 Ex. A ¶ 3; ROA 15 Ex. A, Rule 11(b) (“Jurisdictional and arbitrability disputes, including disputes over the formation, existence, validity, interpretation or scope of the agreement under which Arbitration is sought, and who are proper Parties to the Arbitration, shall be submitted to and ruled on by the Arbitrator. Unless the relevant law requires otherwise, the Arbitrator has the authority to determine jurisdiction and arbitrability issues as a preliminary matter.”). Accordingly, the court finds the Agreement for which specific performance is sought reflects the parties’ clear and unmistakable intent to delegate “interpretation, applicability, or enforceability” questions, other than that of the class action waiver, exclusively to the arbitrator. As the Agreement’s delegation clause is clear and unmistakable, it is enforceable unless it is revocable on state law grounds such as unconscionability. <i>Rent-A-Center, supra</i>,
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		561 U.S. at 72; <i>Tiri v. Lucky Chances, Inc.</i> (2014) 226 Cal. App. 4th 231, 243. “Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 113. 113. To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243; <i>see also OTO, L.L.C., supra</i>, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” <i>Armendariz, supra</i>, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. <i>Sanchez v. Carmax Auto Superstores California, LLC</i> (2014) 224 Cal.App.4th 398, 402. Defendant appears to concede the Agreement is a contract of adhesion. Reply at 3. Accordingly, the delegation clause has a small amount of procedural unconscionability due to its inclusion in what the court finds is a contract of adhesion. However, the fact that an agreement is adhesive is not by itself sufficient to render it unenforceable. <i>See Malone v. Superior Court</i> (2014) 226 Cal.App.4th 1551, 1561; <i>Samaniego v. Empire Today, LLC</i> (2012) 205 Cal.App.4th 1138, 1145 (procedural unconscionability presumptively low absent evidence the defendant actively interfered with plaintiff’s ability to review and understand the arbitration clause). Plaintiff also argues procedural unconscionability on the basis of oppression. Circumstances showing oppression include (1) the amount of time an employee is given to consider a contract; (2) the pressure exerted on him to sign it; (3) its length and complexity; (4) the employee’s education and experience; and (5) whether the employee had legal assistance.
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		<i>OTO, supra</i>, 8 Cal.5th at 126-27. Here, plaintiff provides no facts or authority that support this argument. For example, while plaintiff states she felt rushed and/or pressured to sign the Agreement, Kristi Robinson, Human Resources Leader for defendant VRC, states that plaintiff was sent the onboarding materials on 04-21-2025 at 9:49 a.m. and signed the Agreement more than 24 hours later, at 4:32 p.m. on 04-22-2025. <i>Compare</i> ROA 27 ¶ 6 <i>with</i> ROA 13 ¶¶ 13-14. This is adequate time to consider the four-page, stand-alone Agreement that was presented at the outset of employment. While the Agreement includes statutory references, it is not, as plaintiff argues, difficult to understand or overly complex. Additionally, plaintiff was provided a copy of the Agreement minutes after signing it and could have, but did not, follow the simple procedure to opt-out of the Agreement completely, which was effective up to 10 days later. ROA 13 ¶ 15 Ex. A ¶ 10. The opt-out provision is given its own numbered paragraph and conspicuously appears on the same page as the Agreement’s signature block. <i>Id.</i> Plaintiff has thus failed to establish any degree of oppression. Irrespective of any degree of procedural unconscionability, however, the delegation clause is valid and enforceable because the court finds it is not substantively unconscionable. The Agreement provides “any dispute relating to the interpretation, applicability, or enforceability of the Class Action Waiver, or any dispute otherwise relating to whether this Agreement precludes a class or collective action proceeding, is not within the jurisdiction or authority of the arbitrator and may only be determined by a court” ROA 13 Ex. A ¶ 1. Relying heavily on non-controlling federal authorities, plaintiff appears to argue that any substantive unconscionability present in other parts of the Agreement render the delegation provision substantively unconscionable. Opp. at 18-20. However, plaintiff fails to explain how any of the other parts of the Agreement “impact” the delegation clause, let alone render it substantively unconscionable. Finally, plaintiff argues the delegation clause is “confusing” and thus substantively unconscionable because the Agreement carves out enforceability of the class action waiver for the court. This argument lacks merit. The Agreement is clear the question “is not within the jurisdiction or authority of the arbitrator and may only be determined by a court.” ROA 13 Ex. A ¶ 1. In other words, the Agreement does not delegate the
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		same issues to both the court and the arbitrator and thus no “inconsistencies” exist. <i>See</i> Opp. at 19-20. Accordingly, while plaintiff purports to do so, she fails to show substantive unconscionability specific to the delegation clause itself and it is thus enforceable. <i>See Aanderud v. Superior Ct.</i> (2017) 13 Cal. App. 5th 880, 895 (“any claim of unconscionability must be specific to the delegation clause”); <i>Malone, supra</i>, 226 Cal.App.4th at 1570 (delegation clause part of arbitration agreement that was contract of adhesion demonstrated “some evidence of procedural unconscionability, which must be accompanied by a high showing of substantive unconscionability in order to result in the conclusion that the delegation clause is unenforceable” but had none and was thus valid); <i>Nickson v. Shemran, Inc.</i> (2023) 90 Cal. App. 5th 121, 133 (when “the employee has challenged the enforceability of the agreement as a whole, not the delegation clause in particular,” and “the delegation to the arbitrator to decide enforceability is clear and unmistakable,” “it is for the arbitrator, not a court, to determine whether the [a]greement is unconscionable.”). Class Action Waiver Per the Agreement, the only remaining issue for the court to resolve is the enforceability of the class action waiver. ROA 13 Ex. A ¶ 4. Per the Agreement, the parties “waive any right for a dispute or claim to be brought, heard, or decided as a class or collective action.” ROA 13 Ex. A ¶ 4. It is well settled that class action waivers are enforceable, as here, in arbitration agreements governed by the FAA. <i>Epic Systems Corp. v. Lewis</i> (2018) 138 S. Ct. 1612, 1616; <i>Iskanian v. CLS Transportation Los Angeles, LLC</i> (2014) 59 Cal. 4th 348, 364. In such cases, the class claims are dismissed without prejudice. Plaintiff argues the class action waiver is overbroad and thus unenforceable as it precludes a claim for public injunctive relief in any forum. Specifically, plaintiff asserts “the only form of injunctive relief permitted under the Agreement is a temporary or preliminary injunction in connection with an arbitrable claims.” Opp. at 17. The Agreement permits the parties to seek temporary or preliminary injunctive relief in court if they wish to do so, but “all determinations of final relief shall be decided in arbitration.” ROA 13 Ex. A ¶ 2. In
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		other words, the Agreement permits plaintiff to seek public injunctive relief in arbitration. Plaintiff provides no authority that a claim for public injunctive relief is a “class or collective action” under California law. Plaintiff also argues the Agreement impermissibly includes a representative PAGA waiver. A wholesale waiver of a PAGA claim is unquestionably unlawful. <i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal. 5th 1104, 1125 (representative portions of PAGA claims cannot be waived). However, the Agreement does not purport to do so as it never mentions PAGA or any “representative” claims. As defendant points out, there is a distinction between a “collective” claim and a PAGA claim, which is representative. <i>See Barera v. Apple American Group LLC</i> (2023) 95 Cal.App.5th 63, 86 (“[T]here was no mention of a representative PAGA claim, which, under <i>Viking River</i>, is distinct from class or collective actions. As such, there was no limitation precluding the representative PAGA claims from being arbitrated in the same proceeding as the individual PAGA claims.”). Accordingly, the court finds the class action waiver is enforceable. Defendant is ordered to give notice of this ruling.
17	30-2025-01535559 Wagner vs. Anaheim Arena Management, LLC	Defendant Anaheim Arena Management, LLC’s unopposed Motion to Compel Arbitration is GRANTED. An ADR Review hearing is scheduled for December 16, 2027 at 9:00 a.m. in Department CX103. The parties are ordered to file a joint status conference report at least 16 court days prior to the hearing. Existence of Agreement to Arbitrate The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. <i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565. The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. <i>Id.</i>

	While the burden of persuasion is always on the moving party, the burden of production may shift in a three-step process. First, the moving party must present “prima facie evidence of a written agreement to arbitrate the controversy”, which is satisfied by attaching a copy of the arbitration agreement purporting to bear the opposing party's signature. <i>Gamboa v. Ne. Cmty. Clinic</i> (2021) 72 Cal. App. 5th 158, 164–67. If the moving party meets its initial prima facie burden, and the opposing party disputes the agreement, then the burden shifts to the opposing party to challenge the authenticity of the agreement. Finally, in the third step, the moving party must present admissible evidence of a valid arbitration agreement between the parties by a preponderance of the evidence. <i>Gamboa, supra</i>, 72 Cal. App. 5th at 164–67. Defendant has met its initial burden of demonstrating the existence of an arbitration agreement between the parties. <i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413; <i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972. Defendant presents evidence, through its Vice President of Talent Acquisition & Team Member Experience, Angel Montes, that plaintiff signed the “Mutual Agreement to Arbitrate Claims (the “Agreement”) on 08-26-2021. ROA 11 Ex. 1. Since defendant satisfied the initial burden of demonstrating that a valid arbitration agreement exists, the burden shifts to plaintiff to challenge the authenticity of the agreement. Plaintiff makes no such challenge. The court therefore finds an agreement to arbitrate exists. Relevant Terms The Agreement consists of three pages. ROA 11 Ex. 1. The Agreement requires the parties to arbitrate “any and all disputes, claims or controversies.” <i>Id.</i> at 1. The Agreement contains an express class and collective action waiver. <i>Id.</i> at 2. The court finds the Agreement covers the claims asserted by plaintiff and that the class waiver is enforceable. Federal Arbitration Act The Agreement expressly provides the FAA applies. ROA 11 Ex. 1 at 2. Defendant has also presented undisputed evidence it
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	is engaged in interstate commerce. ROA 11 ¶ 11. The court thus finds the FAA applies. Enforceability In <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, the California Supreme Court recognized that notwithstanding the strong public policy favoring arbitration, “generally applicable contract defenses, such as . . . unconscionability, may be applied to invalidate arbitration agreements without contravening” the FAA’ or California law.” <i>Id.</i> at 125; <i>accord AT&T Mobility LLC v. Concepcion</i> (2011) 563 U.S. 333, 339. “Unconscionability analysis begins with an inquiry into whether the contract is one of adhesion. [Citation.] ‘The term [contract of adhesion] signifies a standardized contract, which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the opportunity to adhere to the contract or reject it.’ [Citation.] If the contract is adhesive, the court must then determine whether ‘other factors are present which, under established legal rules—legislative or judicial—operate to render it [unenforceable].’” <i>Armendariz v. Foundation Health Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 113. 113. To declare an agreement unenforceable, a court must find both procedural and substantive unconscionability. Procedural unconscionability focuses on oppression or surprise due to unequal bargaining power; substantive unconscionability looks at overly harsh or one-sided results. <i>Baltazar v. Forever 21, Inc.</i> (2016) 62 Cal.4th 1237, 1243; <i>see also OTO, L.L.C., supra</i>, 8 Cal.5th at 129-30. “[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” <i>Armendariz, supra</i>, 24 Cal.4th at 114. Plaintiff bears the burden to demonstrate that the arbitration agreement is procedurally and substantively unconscionable. <i>Sanchez v. Carmax Auto Superstores California, LLC</i> (2014) 224 Cal.App.4th 398, 402. The court finds the Agreement is not unconscionable in any respect and is thus fully enforceable on its terms. Plaintiff is ordered to individually arbitrate his claims against defendant. Additionally, the class claims shall be dismissed without prejudice pursuant to the Agreement’s valid class
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		action waiver. Finally, the action is otherwise stayed pending the outcome of the arbitration. 9 U.S.C. § 3; C.C.P. § 1281.4. Defendant is ordered to give notice of this ruling.
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